

State of Maryland

State Board of Elections – January 22, 2026 Meeting

Attendees: (Via Conference Call)
Michael Summers, Chair
Jim Shalleck, Vice Chair
Diane Butler, Member
Victoria Jackson-Stanley, Member
Eric Bryant, Member
Dan Kobrin, Assistant Attorney General
Jared DeMarinis, State Administrator
Melissia Dorsey, Assistant Deputy of Election Policy and Voter Operations
Morgan Rhoden, Director of Communications
Allen Norfleet, Director of Candidacy and Campaign Finance Division
David Garreis, Anne Arundel County Election Director
Ruie Lavoie, Baltimore County Election Director
Wendy Honesty-Bey, Prince George's County Election Director

DECLARATION OF QUORUM PRESENT

Mr. Summers declared that a quorum was present at 1:03 PM. He welcomed Eric Bryant as a new member to the Board. Mr. Bryant expressed gratitude for the opportunity to serve.

ADDITIONS TO THE AGENDA

There were no additions to the agenda.

APPROVAL OF OPEN AND CLOSED MINUTES – 12/18/2025

Mr. Summers requested a motion to approve the minutes for the open meeting from the December 18, 2025 board meeting. Mr. Shalleck moved to approve and was seconded by Ms. Jackson-Stanley. The minutes were approved unanimously.

Mr. Summers requested a motion to approve the minutes for the closed meeting from December 18, 2025. Ms. Butler requested the approval be deferred to the next meeting to allow more time for review and correction. Mr. Summers deferred the approval of the closed meeting minutes until the February meeting.

STATE ADMINISTRATOR'S REPORT

Mr. DeMarinis provided a high-level overview of the written report.

Announcements & Important Meetings

The General Assembly session has begun. HB260 (Fair Campaign Finance), a departmental bill, aimed at the distribution of fair campaign finance funds, was the first bill heard by the new Labor Elections Government Committee. There was also a hearing regarding the management of the address confidentiality program.

Candidacy and Campaign Finance Division

The filing deadline for the annual reports was January 21. Over 83% of committees filed timely. Staff are providing support for late filers. Mr. DeMarinis noted that many committees waited until

the last second to log in. While there were learning curves with the new filing template, he stated that stakeholders generally appreciated the clarity of the new system.

Public Outreach

An aggressive voter outreach campaign is launching, focusing on voter education and election judge recruitment. SBE is developing a new app for the 2026 election. The app is intended to provide voters with easy access to information on registration, how to become an election judge, methods of voting, and critical deadlines.

Procurements

The new voting system procurement is tracking normally. The e-pollbook procurement award has been given, and gap analysis is underway for the 2028 election.

Mr. DeMarinis did not exercise delegated duties.

Mr. Shalleck asked about user reception of the new campaign finance reporting system. Mr. DeMarinis noted some learning curves but overall positive feedback regarding the new system.

Mr. Shalleck asked whether a company was selected for the new voting system. Mr. DeMarinis stated that a vendor has not yet been selected.

Ms. Butler requested that voter outreach ads include instructions on checking voter registration to reduce provisional ballots. She also inquired about the removal of voters from the permanent absentee list and statistics regarding non-citizen voting referrals. Mr. DeMarinis explained that letters are being sent to voters on the permanent mail-in ballot list who have not voted by mail in the last two elections. The letter informs them they are being removed from the permanent list but clarifies that their voter registration status remains active. Ms. Butler asked if this letter could be combined with information for inactive voters. Mr. DeMarinis clarified they must be kept separate because the recipients are active voters who simply chose a different method of voting (e.g., early voting or Election Day).

Ms. Butler requested clarification on statistics regarding non-citizen referrals. Mr. DeMarinis confirmed that 19 referrals were sent to the prosecutor's office, and 18 were removed. The data indicated that 16 non-citizens voted, and 7 voted numerous times. Mr. DeMarinis clarified that numerous times referred to voting in different elections, not multiple times within a single election.

Ms. Jackson-Stanley discussed the good faith effort standard for waiving late fees related to the new system.

ASSISTANT ATTORNEY GENERAL'S REPORT

1. *Sullivan, et al., v. Summers, et al.*, No. 1:24-CV-00172 (D. Md.). Katherine Strauch Sullivan and David Morsberger, two registered voters from Maryland, filed suit against SBE in the federal district court in Maryland alleging that the Board's current regulation defining "electoral process" for voter registration list purposes violates the National Voter Registration Act and First Amendment. The complaint, filed January 18, 2024, seeks declaratory and injunctive relief restricting enforcement of the regulation.

On March 8, 2024, OAG filed a motion to dismiss on behalf of SBE. The plaintiffs filed a response in opposition on March 29, 2024. OAG filed a final reply on April 12, 2024.

On August 30, 2024, plaintiffs filed a motion for summary judgment on a stipulated set of facts. OAG replied in opposition to the motion on September 13, 2024. The plaintiffs filed a reply to that opposition on September 23, 2024.

On March 4, 2025, the district court issued a memorandum opinion and order granting plaintiffs' motion as to Count I; and, denying SBE's motion as to Count I. The court ruled that the regulation is preempted by the National Voter Registration Act. The parties were also ordered to file a status report on their positions relating to the remaining counts.

On March 28, 2025, the parties filed a joint status report requesting the court dismiss the outstanding claims. The Court dismissed the outstanding claims, and issued a final judgment on Count I, on October 30, 2025.

On November 13, 2025, plaintiffs filed a motion requesting attorneys' fees. The parties thereafter negotiated a settlement agreement for the payment of attorneys' fees. That agreement, which has been executed by the parties, will be submitted to the Board of Public Works for final approval.

2. *Brian Della Rocca v. Susan Lee, et al.*, No. 25-1873 (4th Cir.)- On December 2, 2024, Brian Della Rocca filed a complaint against the Secretary of State of Maryland, Chairperson of the Maryland State Board of Elections, and Postmaster General of the United States, seeking to enjoin Maryland from using mail-in ballots in the conduct of its elections. Specifically, the complaint asserts that the United States Postal Service is so unreliable in delivering election mail to- and from voters, that its use to conduct mail-in balloting violated voters rights under the First and Fourteenth Amendments.

The plaintiff served the suit on Secretary Lee and Chairperson Summers on January 16, 2025. OAG filed a motion to dismiss the suit on behalf of both state officials on February 6, 2025. Plaintiff opposed the motion; OAG filed a reply to the opposition on March 5, 2025.

On April 11, 2025, the United States' Postmaster General, through the United States Attorney's Office, filed a motion to dismiss. Plaintiff opposed the Postmaster General's motion on June 09, 2025. On July 15, 2025, the district court granted both motions to dismiss, ruling that the plaintiff did not possess standing to maintain the claim.

Mr. Della Rocca appealed the matter the United States Court of Appeals for the Fourth Circuit. Appellant's brief was filed on October 8, 2025. OAG filed a brief on behalf the appellees on November 10, 2025. Mr. Della Rocca filed a reply brief on December 1, 2025.

On January 16, 2026, Mr. Della Rocca filed a letter under Federal Rule of Appellate Procedure 28(j) noting supplemental authority for the case. OAG is drafting a letter in response.

3. *California, et al., v. Trump, et al.*, 1:25-CV-010810 (D. Mass)- On April 3, 2025, nineteen states, including Maryland, filed a civil complaint in the federal district court for the District of Massachusetts against the President, the United States Attorney General, the Election Assistance Commission, and the United States Secretary of Defense. The complaint alleges, amongst seven counts, that the Executive Order imposing certain requirements on the conduct of voter registration and federal elections is unlawful.

On April 23, 2025, the defendants moved to consolidate the lawsuit with a second set of lawsuits filed in Washington D.C. that challenged the executive order. The court denied that motion on May 9, 2025.

On May 5, 2025, the plaintiff states asked the court for a preliminary injunction to pause implementation of provisions of the Executive Order while the lawsuit was pending. The court granted the preliminary injunction after a hearing. The defendants have appealed the grant of the preliminary injunction to the First Circuit.

Separately, on June 13, 2025, the defendants moved to dismiss the complaint. The plaintiff states filed a response in opposition on July 11, 2025. The Court conducted a hearing on the motion on September 4, 2025. On September 17, the Court issued a memorandum opinion and order denying the motion to dismiss.

Thereafter, the proceedings were stayed at the government's request due to the lapse in appropriations for the Department of Justice. That stay lifted when appropriations were reallocated to the Department.

On Friday, December 12, 2025, the parties filed cross-motions for summary judgment. OAG worked with SBE to provide a factual declaration on Maryland's behalf in support of the plaintiff-states' motion for summary judgment.

4. *California, et al., v. Trump, et al.*, 1:25-CV-010810 (1st Cir.)- This is the appeal of the preliminary injunction granted in the above matter. On October 7, 2025, the Government filed appellants' brief. However, soon after, the proceedings were stayed at the government's request due to the lapse in appropriations for the Department of Justice. That stay lifted when appropriations were reallocated to the Department. Appellees' brief was filed with the court on January 5, 2025. Appellants' brief in reply is due by January 26, 2026.

5. *Serena Bryson, et al., v. Westley Moore, et al.*, No. C-02-CV-25-001586 (Cir. Ct. Anne Arundel County). On June 2, 2025, five registered voters unaffiliated with a political party in Maryland served a civil action on the Governor and State Board of Elections. The suit alleges that the registered voters' electoral rights, granted by the Maryland Constitution, are violated by their inability to vote in state-run, partisan, primary elections. The voters accordingly seek declaratory judgment and an injunction preventing

the State from “conducting, organizing or funding State primary elections in which unaffiliated voters are prohibited from voting.”

OAG filed a motion to dismiss the complaint on July 30, 2025. Plaintiffs filed an opposition to the motion on August 29, 2025. A hearing on the motion took place on October 20, 2025.

On November 14, 2025, the Court granted the motion, dismissing the case in a memorandum opinion. Plaintiffs have appealed the case to the Appellate Court of Maryland.

On January 12, 2026, the unaffiliated voters filed a petition for a writ of certiorari in the Supreme Court of Maryland. The petition asks the Supreme Court to hear the appeal now, rather than waiting to potentially entertain the appeal after a judgment by the Appellate Court of Maryland. OAG is presently drafting an answer to the petition, which is due to the Supreme Court on or before January 27, 2026.

6. *The United States of America v. Jared DeMarinis*, No. 1:25-CV-03934 (D. Md.) On December 3, 2025, the United States Department of Justice filed suit against the State Administrator of Elections over his response to the department’s multiple demands to disclose Maryland’s unredacted voter registration database. The complaint alleges that the State is in violation of a provision of the Civil Rights Act of 1960 in declining to hand over the unredacted information, as demanded. With the complaint, DOJ filed a motion to compel records pursuant to the Civil Rights Act of 1960. The motion advocates to dispense with normal process and the Federal Rules of Civil Procedure, and instead (in a summary fashion) compel production of the voter database.

By agreement between the parties, OAG must file a response to both the complaint and the motion on or before January 30, 2026.

7. *Republican National Committee, et al. v. Jared DeMarinis, et al.*, No. 1:25-CV-03989 (D. Md.) On December 5, 2025, the national and state entities of the Republican Party and two Republican voters registered in Maryland sued the State Administrator of Elections, State Board, and the local boards of elections for Montgomery and Howard County. The complaint alleges that election officials in Maryland are violating the National Voter Registration Act (“NVRA”) by failing to make reasonable efforts to remove ineligible voters from the voter registration database. In support of that allegation, the complaint cites estimated population statistics and compares them to SBE’s reported voter registration totals.

On January 12, 2026, the Democratic National Committee moved to intervene in the case as a defendant. The plaintiffs did not oppose the motion to intervene. OAG, on behalf of SBE, took no position on the motion. The motion remains pending before the Court.

By agreement between the parties, OAG must file a response to the complaint on or before January 30, 2026.

TITLE 13 WAIVERS

Mr. Norfleet presented waiver requests for late filing fees. He explained that Title 13 applies to candidate committees, Political Action Committees (PACs), super PACs, and ballot issue committees. Mr. Norfleet noted that his auditors often work with these committees for months to resolve issues. The division takes difficult life circumstances into consideration when recommending approvals.

Mr. Norfleet recommended two approvals and one denial. Mr. Summers requested a motion to accept the recommendation. The motion was moved by Ms. Butler and seconded by Ms. Jackson-Stanley. The motion was approved unanimously.

Ms. Butler expressed gratitude to Mr. Norfleet for the division's hard work in assisting candidates who may be struggling with the filing process or facing personal difficulties.

TITLE 14 WAIVERS

Mr. Norfleet presented the waiver requests for Title 14, explaining that this category applies to business entities that either employ a lobbyist in the General Assembly or hold government contracts with the state, county, or municipality valued at over \$200,000. Mr. Norfleet noted a significant increase in the volume of requests due to the implementation of the new filing system and a successful outreach initiative. By cross-referencing data with the Ethics Commission, the division identified and registered 275 new filers who had previously failed to report

Mr. Norfleet presented a recommendation for 30 approvals and 9 denials.

Ms. Jackson-Stanley inquired about the criteria distinguishing the waivers recommended for approval from those recommended for denial, particularly regarding complaints about the new system. Mr. DeMarinis explained that unlike campaign treasurers who file frequently, Title 14 filers often only report twice a year and may lack familiarity with the process. The Board grants some leeway on technical difficulties. Mr. DeMarinis clarified that the 9 recommended denials involved filers who failed to demonstrate a good faith effort, such as waiting until after the deadline to attempt filing or blaming technical issues without validity.

Mr. Bryant recused himself from Baltimore Orioles, Washington Area New Automobile Dealers, and Express Scripts due to prior professional relationships. Ms. Jackson-Stanley recused herself from Tides at River Marsh LLC.

Tides at River Marsh LLC was approved with four members in favor and one recusal. Baltimore Orioles, Washington Area New Automobile Dealers, and Express Scripts were approved with four members in favor and one recusal.

The remaining items were approved unanimously.

ADMINISTRATIVE CLOSURES

Mr. Norfleet noted that while this is not a common occurrence, the Board has the authority to administratively close committees. The case presented during the meeting involved a slate committee that had been the victim of theft. Mr. Norfleet explained that the perpetrator (Mr. McCollum) had served time for the crime, and an assigned treasurer, Mr. Bloom, had successfully cleaned up the campaign's finances, which included making residual donations to charities in Baltimore County.

The Board voted unanimously to approve the administrative closure for this committee.

FINAL REGULATIONS

Ms. Dorsey presented regulations for final approval. There were no public comments.

A. 33.02.03.05 (Election Judges Training): Implements law requiring service during voting to be paid for training. Approved unanimously by the Board.

B. 33.04.02.01 (Confidentiality): Clarifies three categories of confidential voters. Approved unanimously by the Board.

C. 33.07.04.02 (Cell Phones): Allows election judges to use cell phones for translation/interpretation services. Approved unanimously by the Board.

D. 33.07.07.01–.03 (Challengers and Watchers): Updated the regulation language and requirements. Ms. Butler and Mr. Shalleck expressed concern that state parties had not been sufficiently consulted or provided feedback, as discussed in previous meetings. Ms. Jackson-Stanley and Mr. Summers noted the regulation went through the standard public comment period without objection. Ms. Jackson-Stanley moved to approve and Mr. Bryant seconded. There were three In Favor, one Opposed (Ms. Butler), and one Abstention (Mr. Shalleck). The motion failed.

E. 33.07.11.02 (Compensation of Election Judges): Clarifies that students receiving credit cannot also be compensated. Approved unanimously by the Board.

F. 33.07.12 (Language Assistance Program): Implements the 2025 law regarding thresholds for non-English materials and translation. Approved unanimously by the Board.

G. 33.08.01.02 (Canvassing Board): Updates regulations to reflect pre-election canvassing schedules. Approved unanimously by the Board.

H. 33.08.01.02-1 (Board Counsel): Updates regarding Board Counsel terms. Approved unanimously by the Board.

I. 33.11.03.08 (Absentee Ballots): Clarifies handling of mail-in ballots received after the close of canvass (stored separately, not presented to Board). Approved unanimously by the Board.

J. 33.16.05.03 (Provisional Ballots): Allows counting of provisional ballots for Board of Education contests even if the voter voted the wrong party ballot. Approved unanimously by the Board.

K. 33.21.05.04 (Special Elections by Mail): Adjusts timing for mailing ballots from 14 to 30 days to match law. Approved unanimously by the Board.

LANGUAGE ASSISTANCE

The program implements a law passed by the General Assembly in 2025. The program applies to counties that meet a specific threshold regarding the number or percentage of residents who speak a language other than English as their primary language. Counties that meet these thresholds must provide online materials, translation services and bilingual election judges. The Board unanimously approved a request authorizing the State Administrator to act on behalf of Anne Arundel, Baltimore City, Baltimore County, Prince George's, and Montgomery County to address language barriers.

ELECTION PLANS

Ms. Rhoden presented the election plans for approval for each county.

Anne Arundel County: Conditional approval granted for Early Heights firehouse location. The candidate associated with the location must ensure no campaign materials/photos are present within the 100-foot zone, and the Director must certify no other viable location exist. Approved unanimously with conditions.

Baltimore City: Partial approval (Early Voting Centers and Drop Boxes only). Polling places deferred. Approved unanimously.

Baltimore County: Ms. Butler and Mr. Bryant raised concerns that 50% of polling places are outside their designated precincts. Director Ruie Lavoie explained that this was due to County Council Districts going from 7 to 9, yet Board of Education Districts remaining at 7. She kept voters in their familiar districts to avoid any more confusion. Approved unanimously.

Frederick County: Approved unanimously.

Prince George's County: Similar concerns raised regarding polling places outside precincts. Director Wendy Honesty-Bey confirmed extensive surveys found no other options. Approved unanimously.

Policy 2025-04 (Election Judge Parity Report)

Requires election directors to provide monthly vacancy reports by party to local boards to ensure parity is achieved where practicable. Mr. Shalleck made a motion to approve and the motion was seconded by Ms. Butler. Approved unanimously.

OLD BUSINESS

Policy 2025-03 PSR Request

the PSR (Public Service Request) policy addresses the public disclosure of voter registration lists and is distinct from standard Public Information Act (PIA) requests for individual records. The proposed policy aims to establish uniformity across all 24 local boards regarding costs and the specific redaction of personal identifying information (PII), such as social security numbers, driver's license numbers, personal phone numbers, email addresses, and the specific agency where a voter registered.

Ms. Butler and Mr. Shalleck stated that the policy title created confusion between PIA (Public Information Act) and PSR (Voter List) requests. There were also objections to subjective language regarding identity theft

Mr. Summers deferred the policy to February to allow for rewriting the title, separating federal/state requirements, and removing opinionated language.

NEW BUSINESS

Mr. Shalleck raised a concern regarding a new USPS policy where mail is "processed" rather than "postmarked" immediately upon drop-off. This creates risks for mail-in ballots which must be postmarked by Election Day. Mr. Bryant concurred, noting potential for litigation.

Ms. Butler asked if the Board was going to address specific portions of the State Administrator's report that were not covered in the previous meeting, as well as the status of an audit. Ms. Butler inquired about the Office of Legislative Audits (OLA) schedule. Mr. DeMarinis clarified that OLA set the schedule for the audit and granted a delay due to the election cycle.

PUBLIC COMMENT

Kelly Foster, who resides in Frederick County, addressed the Board regarding Open Meetings Act compliance by local boards. She cited violations in Frederick County and requested the State Board remind local boards of their obligations under the Transparency Act (Election Law 2-208) to provide documents before votes.

DISCLOSURE OF CAMPAIGN CONTRIBUTIONS

There were no disclosures of campaign contributions.

SCHEDULE NEXT MEETING

The next board meeting is scheduled for February 19, 2026, at 2:00 PM.

CLOSED MEEETING

Mr. Summers requested a motion to move to closed session under General Provisions Article § 3-305(b) to consult with counsel, discuss competitive bidding, and discuss potential litigation.

A motion was made by Ms. Butler and seconded by Ms. Jackson-Stanley to close the public meeting and move into a closed session. The motion passed unanimously.

ADJOURNMENT

A motion to adjourn was moved by Mr. Shalleck, seconded by Ms. Butler, and approved unanimously.

The open session was recessed at 3.:30 PM, subject to reconvening in a closed session.